



Urgent Response – Employer’s Objection to Con-Arb (WECT24486-25)

1 message

Wilbur William Matthee <wilburmat@gmail.com> Fri, 26 Dec 2025 at 12:58

To: Ronel Vorster <RonelV@ccma.org.za>, CCMA communication <IR@afrocentrichealth.com>

Sir/Madam,

I acknowledge receipt of the employer’s notice dated **26 December 2025**, objecting to the Con-Arb process in the matter between **Wilbur Matthee and AfroCentric Health (Pty) Ltd, CCMA Reference WECT24486-25**.

While I respect the employer’s procedural right under Rule 17(a) of the CCMA Rules, I must place on record that this objection is being used as a **deliberate delay tactic**. The employer is already in possession of my full whistleblower dossier, and their objection is designed to compound harm rather than facilitate fair process.

Case Context – Automatic Unfair Constructive Dismissal

This dispute is not a routine dismissal matter. It is an **automatic unfair constructive dismissal** arising from:

- Retaliation against my protected disclosures (whistleblowing).
- Punitive deductions and procedural containment designed to force my resignation under intolerable conditions.
- Suppression of risk reports and governance failures documented in my dossier.

Humanitarian Prejudice

The employer’s objection directly worsens my humanitarian crisis:

- I am **two months in arrears on rent** and face imminent eviction.
- I have no funds for **food or medication** due to punitive deductions.
- Procedural delay undermines my **constitutional right to dignity and fair labour practices**.

Request for CCMA Intervention

I respectfully request that the CCMA:

- **Expedite arbitration proceedings** notwithstanding the employer’s objection, in recognition of the automatic unfair nature of this dismissal.
- Alternatively, **grant interim relief measures** to prevent homelessness and ensure access to food and medication pending arbitration.

Conciliation remains scheduled for **9 January 2026 at 12:00 PM**, and I will attend in good faith. However, I urge the CCMA to recognize that allowing the employer’s delay tactic directly translates into **irreparable harm** and undermines the purpose of Con-Arb, which is to provide swift resolution in urgent disputes.

This submission is made transparently and in good faith, to ensure the CCMA is fully apprised of both the procedural and humanitarian dimensions of this matter.

Sincerely,
Wilbur William Matthee